



File No.: EXP202209847

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on September 1, 2022. The complaint is directed against B.B.B. with NIF ***NIF.1

(hereinafter, the respondent). The reasons on which the complaint is based are as follows:

“(…) the respondent is a tenant of a premises located in the Community of Owners of which the complainant is President, and that he has installed an unmarked video surveillance camera without informative signs indicating the monitored area, facing the public road, without prior administrative authorization for this (…)”.

He provides photographs of the location of the disputed camera (Annex I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent on 10/18/22 and 10/30/22, for him to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations. The forwarding was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and was received by the respondent as evidenced by the acknowledgment of receipt in the file.

THIRD: On 10/14/22, a response was received from the respondent providing a photograph (without date and time) asserting the presence of a sign at the entrance area of the establishment, as well as indicating that he is the main responsible for the installation of the system for security reasons.

He provides photographic evidence indicating the number of cameras, as well as their field of view.

FOURTH: On December 1, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FIFTH: On May 3, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR.

SIXTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and it is recorded in the file that the notification was made by the official postal service, and the respondent has not made any statement.

Upon consulting the database of this Agency on 06/19/23, no response has been received regarding the facts subject to accusation.

SEVENTH: On 06/19/23, a was issued in which the infringement of Article 5.1 c) GDPR is considered proven, for having a camera that excessively records the public transit area at the back of the hospitality establishment, proposing a fine of €500 for this purpose.

EIGHTH: On 07/04/23, a letter was received in this agency from the respondent stating the following: “After the letter submitted on 10/14/22 in which we demonstrate the installation of security cameras in the establishment, we contacted the installation company to modify the angle of the camera (…) so we have decided to remove that camera; we also state that we do not understand the reasons of Mr. A.A.A. as President for being bothered by that camera since it does not focus on the Community but on commercial premises…”.

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

First. The facts arise from the complaint dated 09/01/22, which states the following:

"(...) the respondent is a tenant of a premises located in the Community of Owners of which the complainant is President, and that he has installed an unmarked video surveillance camera without informative signs indicating the monitored area, facing the public road, without prior administrative authorization for this (...)"

He provides photographs of the location of the disputed camera (Annex I).

Second. It is established that Mr. B.B.B. is the main responsible for the installation, who does not deny the presence of a video surveillance system.

Third. It is established that there is a device for capturing images that processes data from an indeterminate number of people, excessively oriented towards a public area.

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LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure. Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

In the present case, an analysis is conducted of the complaint dated 01/09/22 regarding the "presence of a video surveillance camera installed without the consent of the Community and lacking any information in this regard."

The respondent provides documentary evidence proving the presence of an approved information sign in a visible area, therefore the conduct to be analyzed is limited to the "excessive" capture of public space with the external camera for the security of the establishment in its rear area.

It is presumed that the content of Article 5.1(c) of the GDPR is affected, which states: "Personal data shall be:

c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ('data minimization');

It should be noted that individuals are responsible for ensuring that the installed systems comply with current legislation, demonstrating that they meet all the requirements established by the applicable regulations.

The installation of such devices must have the mandatory information sign, indicating the purposes and the responsible party for the processing of personal data, if applicable.

The installed cameras must be directed towards private property, avoiding intimidation of nearby homes and/or public space with such devices.

Under no circumstances may the cameras record images of public roads or neighboring homes (except for access to the property), as this would fall under the jurisdiction of the State Security Forces and Corps.

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The installed cameras must be appropriate for the intended purpose, that is, protection of the main access to the residential area, avoiding any impact on the privacy of neighbors or nearby homes that are affected by the recording of images.

The video surveillance cameras may not record public roads, as the security of public space is the exclusive responsibility of the State Security Forces and Corps.

III

In accordance with the evidence available in this sanctioning procedure, it is considered that the respondent has installed a video surveillance system that is deemed disproportionate as it allows for the capture of public space.

The known facts constitute an infringement attributable to the respondent, classified under Article 5.1(c) of the GDPR, as previously mentioned.

Article 72, paragraph 1(a) establishes a statute of limitations of three years for "infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

IV

Article 83.5 of the GDPR states the following: "Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total global annual turnover of the previous financial year, opting for the higher amount:

a) The basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9 (...)."

In motivating the sanction, it is taken into account that this is a small hospitality establishment, the poor orientation of the installed external camera which suggests an impact on the rights of third parties and/or public space, considering the conduct as grossly negligent as the governing bodies of the Community of owners had informed about the need to regularize the system, which justifies a fine of 500€ for the infringement of Article 5.1(c) of the GDPR for having a poorly oriented video surveillance system, a sanction situated at the lower end of the scale for such conduct.

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V

Given that the respondent has proceeded to withdraw the camera in question, no further measures are to be ordered, without prejudice to the imposed sanction which must be paid under the terms outlined.

It is worth noting that the installation of cameras in homeowners' associations, when it occurs in "common" areas, must be communicated to the governing bodies of the association, and must be installed in compliance with the specific circumstances of the case and only when there are no alternative measures available (e.g., internal alarms or internal cameras in the premises for guidance) or in such a way that the impact on the rights of third parties is minimized (e.g., a camera above the rear access door to protect the establishment).

Therefore, in accordance with the applicable legislation and having assessed the criteria for the gradation of sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on B.B.B., with NIF ***NIF.1, a fine of €500 for an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

SECOND: TO NOTIFY this resolution to B.B.B.

THIRD: To warn the sanctioned party that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within

the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN:

ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed during the executive period.

Upon receipt of the notification and once it is enforceable, if the date of enforceability falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process according to Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection at C/ Jorge Juan, 6, www.aepd.es, 28001 – Madrid, sedeagpd.gob.es, within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension terminated.

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